

14.	25PR0363	ESTATE OF THOMAS ANDREW SALATA
PRELIMINARY INJUNCTION		

Petitioner, Pamela Salata ("Petitioner"), filed a Motion for Preliminary Injunction on September 1, 2026. An Opposition was filed by Respondents, Jonathan Salata and Miaroby Salata (collectively "Respondents"), on September 4, 2026. Petitioner's Reply was filed on September 11, 2026.

Request for Judicial Notice

Respondents seeks judicial notice of 1) Amended Petition of Surviving Spouse for Order Confirming Community Property Interests; For Recovery and Set Aside of Unauthorized Transfers; For Injunctive Relief; For Accounting; and For Related Relief Pursuant to Probate Code §§ 850-859, 5020, 5021; Family Code §§ 26 1100(b), 1102; and, Civil Code § 682,1, filed on January 15, 2026; and 2) Objection of Jonathan Salata to Amended Petition of Surviving Spouse for Order Confirming Community Property Interests; For Recovery and Set Aside of Unauthorized Transfers; For Injunctive Relief; For Accounting; and For Related Relief Pursuant to Probate Code §§ 850-859, 5020, 5021; Family Code §§ 1100(b), 1102; and, Civil Code § 682,1, filed on March 26, 2026.

Judicial notice is a mechanism which allows the Court to take into consideration matters which are presumed to be indisputably true. California Evidence Code Sections 451, 452, and 453 govern the circumstances in which judicial notice of a matter may be taken. While Section 451 provides a comprehensive list of matters that must be judicially noticed, Section 452 sets forth matters which *may* be judicially noticed, including, but not limited to, "[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States."

Section 452 provides that the court "may" take judicial notice of the matters listed therein, while Section 453 provides a caveat that the court "shall" take judicial notice of any matter "specified in Section 452 if a party requests it and: (a) Gives each adverse party sufficient notice of the request...to enable such adverse party to prepare to meet the request; and (b) Furnishes the court with sufficient information to enable it to take judicial notice of the matter." Cal. Evid. Code § 453.

While the request made by Respondents fall within the purview of Section 452, matters which *may* be judicially noticed, the Court does find that Respondents provided Petitioner and the Court sufficient notice of the request and copies of the documents requested to be noticed. As such, Respondents have satisfied the requirements of Evidence Code § 453 and the request for judicial notice is granted.

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Legal Principles

“As its name suggests, a preliminary injunction is an order that is sought by a plaintiff prior to a full adjudication of the merits of its claim. [Citation.]” (*White v. Davis* (2003) 30 Cal.3d 528, 554.) The purpose of such an order is to preserve the status quo pending a determination on the merits of the action. (*Id.*, at p. 553; *Continental Baking Co. v. Katz* (1968) 68 Cal.2d 512, 528.)

Code of Civil Procedure section 526 provides for an injunction in the following cases: “(1) When it appears by the complaint that the plaintiff is entitled to the relief demanded, and such relief, or any part thereof, consists in restraining the commission or continuance of the act complained of, either for a limited period or perpetually. [¶] (2) When it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste, or great or irreparable injury, to a party to the action. [¶] (3) When it appears, during the litigation, that a party to the action is doing, or threatens, or is about to do, or is procuring or suffering to be done, some act in violation of the rights of another party to the action respecting the subject of the action, and tending to render the judgment ineffectual. [¶] (4) When pecuniary compensation would not afford adequate relief. [¶] (5) Where it would be extremely difficult to ascertain the amount of compensation which would afford adequate relief. [¶] (6) Where the restraint is necessary to prevent a multiplicity of judicial proceedings. [¶] (7) Where the obligation arises from a trust.” (*Id.*, subd. (a).)

A ruling on an application for a preliminary injunction is not an adjudication of the ultimate rights in the controversy. It merely represents the trial court’s discretionary decision whether the defendant should be restrained from exercising a claimed right pending trial. (*Cohen v. Bd. of Supervisors* (1985) 40 Cal.3d 277, 286.) “In deciding whether to issue a preliminary injunction, a trial court must evaluate two interrelated factors: (i) the likelihood that the party seeking the injunction will ultimately prevail on the merits of [their] claim, and (ii) the balance of the harm presented, i.e., the comparative consequences of the issuance and nonissuance of the injunction.” (*Common Cause v. Bd. of Supervisors* (1989) 49 Cal.3d 432, 441–442 [fn. omitted].) “The trial court’s determination must be guided by a ‘mix’ of the potential-merit and interim-harm factors; the greater the plaintiff’s showing on one, the less must be shown on the other to support an injunction. [Citation.]” (*Butt v. State of Cal.* (1992) 4 Cal.4th 668, 678.) However, “[a] trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim.” (*Ibid.*)

Background

Petitioner asserts that she and Decedent, Thomas Salata (“Decedent”), acquired the real property and residence at 2745 Dove Meadow Court, Cameron Park, California (the “Subject Property”) during marriage, taking title as community property with right of survivorship. Prior

to Decedent's death, Decedent asked her to dismiss the ongoing dissolution proceedings and represented that she would be better protected financially by remaining married and taking as his surviving spouse. Shortly thereafter, Decedent allegedly deeded his community property interest in the home to Respondent Jonathan without Petitioner's knowledge or participation.

Respondents moved into the Subject Property in late May or early June 2025, prior to the Gift Deed being executed, without Petitioner's permission, and have continued to reside in the home while Petitioner lives temporarily as a guest in a friend's home due to the hostile atmosphere amongst the Parties.

Petitioner further claims direct ownership of one-half of the presumptively community property portion of all funds from every account or financial interest Decedent held, funded, controlled, or beneficially owned at any time from June 18, 2024, through death. Petitioner contends that Decedent transferred substantial funds into an account involving Respondent Jonathan before Decedent's death.

Discussion

Merits of the Claim

1. Subject Property

Petitioner asserts that her ownership floor of the Subject Property is undisputed. The only disputed ownership question is whether she owns one-half or the entire Subject Property, as there is a likelihood of establishing the concealed Gift Deed is invalid, ineffective, or insufficient to defeat her present ownership and possessory rights.

Respondents argue that Decedent's conduct prior to death, including changing beneficiary designations, executing estate-planning documents, executing an instrument intended to sever survivorship, and recording that instrument, evidences his intent to terminate the survivorship of the Subject Property. Decedent acted with the assistance of legal counsel and financial professionals, and his conduct remained consistent across multiple instruments. Such conduct demonstrates that Respondents will prevail on the merits.

The Court finds Petitioner has established the requisite likelihood of prevailing on the merits.

Family Code § 1102 expressly prohibits the gift deed executed by the Decedent stating:

(a) Except as provided in Sections 761 and 1103, either spouse has the management and control of the community real property, whether acquired prior to, or on or after January 1, 1975, but both spouses, either personally or by a duly authorized agent, are required to join in executing an instrument by which that community real property or an interest therein is leased for a longer period than one year, or is sold, conveyed, or encumbered.

It is undisputed the Petitioner had neither knowledge of the gift and certainly did not join in executing the deed. Any facts surrounding the intent of the Decedent or implied or actual knowledge of the Petitioner if they exist are all irrelevant. The deed is voidable as a matter of law. The cases cited by Respondents are inapplicable as they address community property which is NOT real property. Respondents conflate the ability of a spouse to terminate the right of survivorship pursuant to Civil Code § 682.1 which is authorized by law, with the unlawful act of executing a gift deed, as was the case here. The intent or mistake of the Decedent, if it existed, in conflating the two is of no consequence. The conveyance was unlawful as a matter of law. As such, the outcome regarding the title to the Subject Property is determinable and will ultimately be confirmed as Petitioner's sole property.

2. Covered Funds

Petitioner argues that the present record establishes a substantial probability that the Covered Funds include community property belonging directly to Petitioner. Petitioner requests an immediate provisional release of her presumptive one-half community property share in Covered Funds shown to have been acquired during marriage or derived from community sources.

Respondents argue the Court should first determine characterization and ownership before using preliminary relief to redistribute control of Covered Funds by the Special Administrator. The fact Petitioner asserts an interest in an asset does not transform the entire asset into Estate property nor does existence of a community property claim entitle Petitioner to provisional distribution of an entire account.

Except as otherwise provided by statute, all property, real or personal, wherever situated, acquired by a married person during the marriage while domiciled in this state is community property. Family Code § 760.

Upon the death of a person who is married or in a registered domestic partnership, one-half of the community property belongs to the surviving spouse, and the other one-half belongs to the decedent. Probate Code § 100.

The Court finds that the Covered Funds are presumptively community property. As such, Petitioner has established a likelihood of success on the merits.

Balance of Hardships

1. Subject Property

Petitioner argues that her ownership in the Subject Property is undisputed. As she is an owner paying the mortgage, taxes, insurance, utilities, and preservation expenses, the equities weigh in favor of her maintaining exclusive possession of the Subject Property. Prior to Respondents moving into the Subject Property, it was her and Decedent's marital home. Since

this time, Petitioner has lived temporarily as a guest in a friend's home as Respondents' occupancy has made it a hostile environment.

Respondents argue that the balance of interim harms favors denial, as Petitioner's requests would exclude Respondents from the home they presently reside in. Such a result would not preserve existing circumstances but would give Petitioner a substantial portion of the practical benefit she would obtain if she ultimately prevailed on her ownership claims.

As stated above, the Court concludes the gift deed to Respondents is voidable as a matter of law. There are no facts which Respondents could present which will alter the fact the deed was executed in violation of Family Code § 1102. Petitioner is also solely bearing the mortgage, taxes, insurance, utilities, and preservation expenses, while being deprived of possession of her marital home. The hardship to Petitioner from continued exclusion therefore outweighs the hardship to Respondents. Whether Respondents assisted Decedent in executing a deed in their favor they knew was unlawful or were completely innocent in the transaction is irrelevant to the validity of the deed. While there is certainly hardship to Respondents, there is no likelihood they have any entitlement to occupy or possess the property which is cognizable under any facts they could present. The Court therefore finds that the balance of hardships weighs in Petitioner's favor.

2. Covered Funds

Petitioner is retired and lives on a fixed income. Depriving Petitioner access to the funds presumptively belonging to her materially affects her ability to secure stable housing, pay expenses for the Subject Property, meet ordinary living needs, and protect her rights. Petitioner asserts that no evidence has been produced in the record showing Respondent Jonathan contributed independently owned funds to the account or otherwise held a beneficial ownership interest in the transferred money before the transfer.

Respondents argue that Petitioner's financial claims concerning the Subject Property expenses and disputed funds can be later addressed through an accounting and appropriate final orders and the distribution of funds prior to ownership is established is not preservation.

The Court finds the balance of hardships weighs in Petitioner's favor.

As Petitioner has established a likelihood of success on the merits and the balance of hardships weigh in her favor, Petitioner's request for a preliminary injunction is granted as follows:

1. Special Administrator shall have the authority to receive, review, and analyze the verified accounting, records, and funds ordered produced in this matter; identify, investigate, and marshal Estate and recoverable assets; obtain and review account-opening, beneficiary, ownership, and transaction records voluntarily produced or produced pursuant to subpoena, court order, or other authorized process; trace predeath and post-death

transfers; demand and receive Estate property; receive disputed property for neutral custody; establish and maintain segregated fiduciary accounts; retain expressly approved professional assistance; report obstruction or noncompliance; and seek further instructions;

2. Respondent shall, within five court days after service of the Court's order, provide a verified identification and accounting of every account or financial interest Thomas Andrew Salata held, funded, controlled, or beneficially owned from June 18, 2024 through death, and to produce all account-opening documents, beneficiary designations, ownership records, statements, transaction histories, transfer records, withdrawal records, and related financial records in his possession, custody, or control to Petitioner and Special Administrator;
3. All Covered Funds shall be preserved by Special Administrator regardless of registration, beneficiary designation, claimed survivorship status, or present characterization;
4. Special Administrator shall provisionally release to Petitioner one-half of all Covered Funds and traceable proceeds subject to the community-property presumption, absent competent separate-property tracing;
5. The remaining presumptive one-half share shall be held by Special Administrator for neutral safekeeping pending adjudication, without determining final ownership; and continued preservation of any amount subject to competent competing tracing pending agreement or further order;
6. Special Administrator's reasonable court-approved fees and expenses shall be paid from the Estate assets she marshals or from the Estate's ultimately determined share of disputed funds, and not from Petitioner's community-property share, together with a provisional reimbursement of \$7,459.78 paid directly to Petitioner for documented Property expenses she paid from June 1 through August 31, 2026, a \$3,000 payment to Special Administrator due within ten (10) days of the Court's Order for September 2026, and \$3,000 deposited with Special Administrator beginning October 1, 2026 and on or before the first day of each month thereafter while Respondents or anyone occupying through Respondents remain anywhere on the Property; if Special Administrator's fiduciary account is not yet available by an applicable deadline, Respondent Jonathan shall deliver a cashier's check to Special Administrator made payable to the Estate, and the funds shall not be used except as further ordered by the Court;
7. Respondents are ordered to cooperate as necessary to preserve the Property, maintain insurance, prevent waste, preserve records, and preserve and account for any rents, rental income, license payments, or other income actually received from the use or occupancy of any portion of the Property after Thomas's death;
8. Petitioner is granted exclusive possession and control of the property located at 2745 Dove Meadow Court, Cameron Park, California. Respondents are ordered to vacate the residence no later than September 23, 2026, at 5:00 p.m.;

9. Respondents and all persons acting under their direction or control shall not interfere with Petitioner's use and access of the Property. Respondents shall promptly provide Petitioner with all keys, codes, remotes, passwords, and other access credentials reasonably necessary for her access to the main residence and shall not change or disable such credentials without prior Court approval. Respondents are ordered to comply with the Court's June 1, 2026, order concerning their preservation, access, removal and/or placement. Respondents shall not interfere with Petitioner's animals. Respondents shall preserve Petitioner's personal property and shall not remove, conceal, damage, dispose of, or materially alter such property except by agreement or further Court order.

TENTATIVE RULING #14:

PETITIONER'S PRELIMINARY INJUNCTION IS GRANTED AS OUTLINED IN THE TENTATIVE RULING.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.